

The Prohibition On Sale Of Cigarettes And Other Tobacco Products Around Educational Institutions Rules, 2004

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Union of India - Act

The Prohibition On Sale Of Cigarettes And Other Tobacco Products Around Educational Institutions Rules, 2004

UNION OF INDIA

India

The Prohibition On Sale Of Cigarettes And Other Tobacco Products Around Educational Institutions Rules, 2004

Rule

THE-PROHIBITION-ON-SALE-OF-CIGARETTES-AND-OTHER-TOBACCO-PRODUCTS-AROUND-EDUCATIONAL-INSTITUTIONS-RULES-2004 of 2004

Published on 1 September 2004

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The Prohibition On Sale Of Cigarettes And Other Tobacco Products Around Educational Institutions Rules, 2004

Published vide Notification G.S.R. 561(E), dated 1.9.2004, published in the Gazette of India, Extraordinary, Part 2, Section 3(i), Sl. No. 379, dated 1.9.2004.

360.

No. G.S.R. 561 (E), dated 1st September, 2004 - In exercise of the powers conferred by section 31 read with section 6 of the Cigarettes and Other Tobacco Products (Prohibition of Advertisement and Regulation of Trade and Commerce, Production, Supply and Distribution) Act, 2003 (

34 of 2003

), the Central Government hereby makes the following rules, namely:-

1.

Short title, extent and commencement .-(1) These rules may be called The Prohibition on Sale of Cigarettes and Other Tobacco Products Around Educational Institutions Rules, 2004.

(2)

They shall extend to the whole of India.

(3)

They shall come into force on the 1st day of December, 2004.

2.

Definitions .-In these rules, unless the context otherwise requires,-

(a)

"Act" means the Cigarettes and Other Tobacco Products (Prohibition of Advertisement and Regulation of Trade and Commerce, Production, Supply and Distribution) Act, 2003;

(b)

"Educational Institution" means places/centres where educational instructions are imparted according to the specific norms and include schools, colleges and institutions of higher learning established or recognised by an appropriate authority;

(c)

"Section" means a section of the Act; and

(d)

words and expressions used herein and not defined in these rules but defined in the Act, shall have the meanings, respectively, assigned to them in the Act.

3.

Prohibition on sale of cigarettes and other tobacco products around educational institutions .-(1) Display of board .-The owner or manager or any person in-charge of affairs of the educational institution shall display and exhibit a board at a conspicuous place(s) outside the premises, prominently stating that sale of cigarettes and other tobacco products in an area within a radius of one hundred yards of the educational institution is strictly prohibited and that it is an offence punishable with the fine which may extend to two hundred rupees.

(2)

Measurement of distance .-Distance of one hundred yards shall be measured radially starting from the outer limit of boundary wall, fence or as the case may be, of the educational institution.

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